

GREGOIRE v. BIDDLE et al.

No. 36, Docket 21401.

United States Court of Appeals,
Second Circuit.

Argued Oct. 3, 1949.

Decided Oct. 24, 1949.

L. HAND, Chief Judge.

The plaintiff has appealed from a judgment, which dismissed a complaint in two counts because of its "failure to state a claim upon which relief can be granted"—Rule 12(b) (6), Federal Rules of Civil Procedure, 28 U.S.C.A. The first count alleged that the five defendants were two successive Attorneys-General of the United States, two successive Directors of the Enemy Alien Control Unit of the Department of Justice, and the District Director of Immigration at Ellis Island; and that they arrested the plaintiff on the pretence that he was a German and therefore an enemy alien. In spite of a ruling of the Enemy Alien Hearing Board after a hearing that he was a Frenchman, they kept him in custody from January 5, 1942, until September 18, 1946, when Judge Knox found that he was a Frenchman and released him by an order, D.C. 69 F.Supp. 889, which this court affirmed on November 6, 1947.¹ The count ended by alleging that the arrest and imprisonment was "without any authority of law and without any reasonable or colorable cause," and that the defendants "conspired together and maliciously and wilfully entered into a scheme to deprive the plaintiff * * * of his liberty contrary to law." The second count reiterated these allegations and added that the defendants "subjected the plaintiff * * * to the deprivation of his liberty and of his rights, privileges and immunities secured by the Constitution and the laws of the United States," and deprived him of equal protection of the law in violation of Sections 43 and 47 of Civil Rights Act.² The judge held that the defendants had an absolute immunity from liability, even though their unlawful acts had been induced only by personal ill-will, and dismissed the complaint for that reason.

We lay aside any extenuating facts, which we might gather from the record in *United States ex rel. Gregoire v. Watkins*, supra,¹ not because we should not be free to consider them if need were;³ but, because

Gunther Jacobson, New York City, for plaintiff-appellant.

John F. X. McGohey, U. S. Atty., New York City, Harold J. Raby, New York City, Robert Roy Dann, New York City, for defendants-appellees.

Before L. HAND, Chief Judge, and SWAN and CLARK, Circuit Judges.

1. *United States ex rel. Gregoire v. Watkins*, 2 Cir., 164 F.2d 137.

2. Secs. 43 and 47, Title 8 U.S.C.A.

3. *Ira S. Bushey & Sons v. Hedger Transportation Corp.*, 2 Cir., 167 F.2d 9, 12 (Note 2).